

INTA Practice Guides Report

Trademark Cancellations Guide

China

SINGLE JURISDICTION REPORT

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks. This jurisdiction is not a member of the European Union; we have no European Union Trade Marks.
- "Cancellation" is not defined by legislation. While there is no express definition of "cancellation" in China's legislation, the legislation sets out various grounds for cancellation of a registered trademark.
- Cancellation actions can be filed online at the following URL: <http://sbj.cnipa.gov.cn/wssq/>. <https://wssq.sbj.cnipa.gov.cn:9443/tmsve/main/login.jsp>

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark is misleading and/or deceptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication (Geographical names of administrative divisions at or above the county level and foreign geographical names well known to the public may not be used as trademarks, except where the geographical names have other meanings or constitute part of a collective mark or certification mark. Where a trademark using any of the above-mentioned geographical names has been approved and registered, it shall continue to be valid.); the mark is functional; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention; the mark includes a badge or emblem of particular public interest; the mark is used in a misleading and/or deceptive manner; the mark is prohibited in this jurisdiction; the application for or registration of the mark was made in bad faith.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings: there is an earlier application or registered mark; there are earlier use-based rights in an unregistered mark; the mark is covered by a copyright; the mark is a company name; the mark is notorious or well known (Article 6bis of the Paris Convention); the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention); the mark is a trade or business name; other relative grounds, i.e., grounds that are based on another party's proprietary rights: the mark is a famous person's name; the mark is a patent design.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- In addition to the absolute or relative grounds listed above and/or the non-use

grounds listed below, the following grounds may also be raised in cancellation proceedings: Where a trademark registrant alters a registered trademark without approval, or alters the name, address, or other matters concerning the registrant without approval, the Trademark Office shall order the registrant to rectify the situation by a specified time; if the registrant still fails to rectify it during the specified time period, the Trademark Office shall cancel the registered trademark.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings. To cancel a registered trademark on the ground of non-use for three consecutive years, a separate application must be filed.
- In relation to cancellation for non-use, "use" is defined as: the use of the trademark on goods, packaging, or containers of the goods or in trading documents, and the use of the trademark in advertising, publicity, exhibition, or any other business activities.
- The definition of "use" provided above is derived from statute, regulation or administrative rule: Article 48 of the Trademark Law of the People's Republic of China.
- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor.
- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: three years counting back from the date on which the application for cancellation based on non-use was filed.
- The consequences of use being interrupted are: In the instance of use of a registered trademark's being interrupted for three consecutive years, if any third party has applied for cancellation of such mark based on non-use, the mark will be cancelled. Otherwise, the registered mark shall continue to be valid.

II. Grounds — E. Multiple Grounds

- An application for cancellation may be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds). If multiple grounds exist for a cancellation, a combination of absolute and relative grounds can be made in one application. For a non-use cancellation, a separate application must be filed.
- The advantages of filing an action based on multiple grounds are as follows: Filing an action based on multiple grounds will enhance the chance of success for cancellation. In an application for cancellation based on multiple grounds, if one ground cannot be accepted by the competent authority, the other grounds will be considered. However, in an application for cancellation based on a single ground, if that ground cannot be accepted, the application will be rejected.
- If an action is based on multiple grounds and the action could be disposed of on one ground, the other grounds will nevertheless be considered.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the

proceedings.

III. Forum — A. Forum

- The forum for cancellation proceedings varies depending on the grounds on which the proceedings are brought. Cancellation proceedings based on absolute grounds may be brought before the following administrative body: China National Intellectual Property Administration (CNIPA). Cancellation proceedings based on relative grounds may be brought before the following administrative body: CNIPA. Cancellation proceedings based on non-use grounds may be brought before the following administrative body: CNIPA. Cancellation proceedings based on grounds other than absolute, relative or non-use grounds may be brought before the following administrative body: CNIPA.
- The administrative body/bodies listed above is/are not independent of the trademark registry. The China National Intellectual Property Administration (CNIPA) is also the trademark registry.

IV. Standing — A. On Basis of Grounds

- The parties that have legal standing to apply for cancellation vary, depending on the grounds for the cancellation.
- For cancellations based on absolute grounds, the following parties have standing: any person. Legal interest is not required.
- For cancellations based on relative grounds, the following parties have standing: any interested person. Legal interest is required.
- For cancellations based on non-use grounds, the following parties have standing: any person. Legal interest is not required.
- For cancellations based on grounds other than absolute, relative or non-use grounds, the following parties have standing: other: The China Trademark Office can initiate cancellation proceedings ex officio.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a "person" is defined as: both natural and juridical persons.
- For purposes of standing, an "interested person" is defined as: someone who has filed an earlier pending application to register a conflicting trademark; someone who owns an earlier conflicting trademark registration; someone who owns earlier rights in a copyright or design that conflicts with the mark that is the subject of the trademark application; someone who owns rights in a conflicting trademark that were acquired through use; someone who is a licensee of any conflicting trademark or other intellectual property right; someone who owns a company name that conflicts with the mark that is the subject of the trademark application.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may never apply jointly for cancellation.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may be sought by a defendant.

V. Representation — A. Qualifications

- The applicant is required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings in the following circumstances: Foreign applicants must appoint a local trademark agent to handle the cancellation of a Chinese trademark.
- The representative must be domestic, i.e., with an office in the jurisdiction.
- Additional professional qualifications required of a representative in cancellation proceedings are as follows: The local trademark agent must be qualified and recorded with the China National Intellectual Property Administration.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney must be provided to a representative by an applicant in cancellation proceedings.
- There are no notarization/legalization requirements for a power of attorney form in cancellation proceedings. A power of attorney, simply signed, together with a duplicate copy of the official Certificate of Incorporation attesting to the existence status of the entity applicant or a duplicate copy of the passport of the individual applicant, will suffice.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- The deadline for bringing cancellation proceedings varies, depending on the grounds for cancellation. For proceedings based on absolute grounds, the deadline is: anytime after the mark is approved for registration. For proceedings based on relative grounds, the deadline is: within five years from the date of registration. Where a registered trademark that infringes a prior well-known trademark is obtained in bad faith, the owner of the well-known trademark shall not be bound by the five-year limitation. For proceedings based on non-use grounds, the deadline is: anytime after the mark is approved for registration, if the mark is not used for a period of three consecutive years. For proceedings based on grounds other than absolute, relative or non-use grounds, the deadline is: (1) When the following circumstances occur: (a) where a registered trademark is altered unilaterally (i.e., without the required registration); (b) where the name, address, or other registered matters concerning the registrant of a registered trademark are changed unilaterally (i.e., without the required application); or (c) where the registered trademark is assigned unilaterally (i.e., without the required approval), the local Administration for Industry and Commerce has the right to suggest that the China Trademark Office cancel the registered trademark; the China Trademark Office also has the right to cancel a registered trademark. (2) Where a registered trademark becomes a generic term in a category of the approved goods/services, any party may apply to the Trademark Office for the removal of the registered trademark. (3) Where a trademark was acquired by fraud or any other unfair means, there is no deadline for cancellation as prescribed by the Trademark Law. Theoretically, the Trademark Office will cancel

the registered trademark in question, or any other organization or individual may request the Trademark Review and Adjudication Board to make an adjudication to cancel such a registered trademark.

VI. Commencement — C. Statute of Limitations

- The statute of limitations or acquiescence provisions that will prevent cancellation vary, depending on the grounds for cancellation. For proceedings brought on absolute grounds, the statute of limitations or acquiescence provision is: There are no express acquiescence provisions applicable to cancellation actions based on grounds other than relative grounds. For proceedings brought on relative grounds, the statute of limitations or acquiescence provision is: five years after the cancelled trademark is granted for registration unless the cited trademark is well known and the cancelled trademark was registered in bad faith. For proceedings brought on non-use grounds, the statute of limitations or acquiescence provision is: There are no express acquiescence provisions applicable to cancellation actions based on grounds other than relative grounds.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible only if the cancellation is based on the following grounds: relative grounds; non-use grounds.
- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: approximately 12 to 18 months upon acceptance of the case, for cancellation based on absolute or relative grounds; approximately 9 to 12 months upon acceptance of the case, for cancellation based on non-use; or six months for the China National Intellectual Property Administration to cancel those registered marks that are altered unilaterally, or in instances where the name or address of registrants is changed unilaterally, or where another registered matter is changed unilaterally or is assigned unilaterally.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: There is no clear time frame.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees; statutory or regulatory fees.
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation.
- If an application for cancellation is based on multiple grounds, no additional official fees are due.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- No documents need be notarized or legalized in cancellation proceedings.
- The documentation that must be submitted and the procedures necessary to initiate

cancellation proceedings vary, depending on the grounds for cancellation. The documentation and procedures to initiate cancellation proceedings based on absolute grounds are as follows: an application with written arguments and supporting evidence submitted to the Trademark Review and Adjudication Board, together with copies of the application corresponding to the number of the counterparties. The documentation and procedures to initiate cancellation proceedings based on relative grounds are as follows: an application with written arguments and supporting evidence submitted to the Trademark Review and Adjudication Board, together with copies of the application corresponding to the number of the counterparties. The documentation and procedures to initiate cancellation proceedings on non-use grounds are as follows: an application submitted to the China Trademark Office. In non-use cancellation proceedings, no evidence is required when initiating the cancellation. The documentation and procedures to initiate cancellation proceedings based on grounds other than absolute, relative or non-use grounds are as follows: Where the trademark use violates the regulation on the administration of the use of trademarks as prescribed by the Trademark Law, the local Administration for Industry and Commerce has the right to suggest that the China Trademark Office cancel a registered trademark; the China Trademark Office also has the right to cancel a registered trademark. Where a registered trademark becomes a generic name in a category of the designated goods/services, any third party may apply to the Trademark Office for the removal of the registered trademark in question from the Trademark Register. When applying for the removal, the applicant must submit evidence certifying that the trademark is a generic term now.

XI. Discovery — A. Interrogatories

- No party may request that any other party answer written questions, under oath ("Interrogatories").

XI. Discovery — B. Document Requests

- No party may request that any other party produce documents in response to written document requests ("Document Requests").

XI. Discovery — C. Depositions

- No party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions").

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: where the application for cancellation is based on non-use grounds; where counterarguments are filed by the trademark holder, in which case the burden of proof shifts to the applicant; or when the applicant submits counterevidence against the trademark holder.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory.
- The deadline for the applicant to submit written arguments is determined by statute, rule or regulation and is: Generally, written arguments should be filed at the first filing of the cancellation. After the first filing, there is a three-month grace period given to the applicant to supplement further (or comprehensive) arguments and evidence to

support the request for cancellation. The deadline for the respondent to submit written arguments is determined by statute, rule or regulation and is: Generally, there is one-month period given to the respondent upon receipt of the official notice to submit written arguments. In a non-use cancellation, the respondent has two months to submit written arguments as response. The deadline for submitting written arguments is determined by scheduling order or ruling of the court, other judicial tribunal or administrative body and is: for the China Trademark Office or the Trademark Review and Adjudication Board, 30 days, upon receipt of the official notice.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are not available to the applicant to file written arguments. An exception is that applicants are permitted to apply for time extensions with sufficient and convincing evidence proving that the failure to file written arguments within the time limit is due to force majeure.
- Extensions of time are not available to the respondent to file written arguments.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings.
- The determination of whether oral hearings will take place is made by: the China National Intellectual Property Administration, at its own discretion, at the request of a party, or on the basis of practical needs.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: documentary evidence, material evidence, audiovisual material, statements of the parties, testimony of witnesses, expert opinions, etc.
- Evidence must be submitted to: the China National Intellectual Property Administration.
- Evidence must be submitted by the following deadline: within three months from the date on which the application for cancellation is filed or when the evidence originates.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: documentary evidence, material evidence, audiovisual material, statements of the parties, testimony of witnesses, expert opinions, etc.
- Evidence must be submitted to: the China National Intellectual Property Administration.
- Evidence must be submitted by the following deadline: within three months from the date on which the cancellation application is filed or when the evidence originates.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: No evidence is required. However, in order to enhance the chance of success, the applicant can provide evidence of non-use, including, for example, an investigation report about the non-use of the trademark.
- Evidence must be submitted to: the China National Intellectual Property Administration.
- Evidence must be submitted by the following deadline: when the cancellation application is filed.

XV. Evidence — D. To Establish Other Grounds

- The following types of evidence may be submitted to establish grounds other than absolute, relative or non-use grounds: Where a trademark registrant alters a registered trademark without approval, or alters the name, address, or other matters concerning the registrant without approval, the Trademark Office shall order it to rectify the situation by a specified time. If the registrant fails to rectify it during the specified time period, the Trademark Office shall cancel the registered trademark. The evidence is to prove that the above changes were made in use without approval and the registrant refuses to rectify the situation under the requirements.
- Evidence must be submitted to: Neither the laws nor the regulations stipulate to whom evidence must be submitted. In practice, such cancellation proceedings have never been initiated by the China Trademark Office.
- Evidence must be submitted by the following deadline: There is no deadline according to the law.

XV. Evidence — E. Applicant's Proof of Use

- The applicant is not required to submit proof of use of the mark on which the cancellation is based.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time available for the applicant's submission of evidence are the same, regardless of the grounds on which the cancellation proceedings are based. Extension is possible for: an additional three months; however, the request for extension should be made at the date of filing of the application for cancellation.
- No official fees are payable to obtain an extension for submitting evidence.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: generally, within three months after the filing of the application for cancellation.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is optional. If no response is made, a decision will be made based on the arguments and evidence as filed by the applicant.
- Evidence in reply must be submitted by the following deadline: within 30 days from the date of receipt of the notification of response. Supplemental related evidence must be submitted within three months from the date on which the application is filed. In a non-use cancellation proceeding, evidence may be submitted within two months from the date of receipt of the notification of response.
- Extensions of time for the respondent's submissions are not available.
- Petitioner cannot demand that respondent provide additional particulars relating to the respondent's proffered evidence.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; catalogues; evidence of turnover; packaging; labels; price lists; advertisements; written statements; market surveys; use of the mark on the Internet; maintenance of a website; use of the mark on a social media site.
- In assessing whether "use has been made," sufficient use is demonstrated

by: evidence indicating the actual use of the trademark in the mainland of China within three years before the cancellation application is filed; or evidence of the use of the identical trademark as indicated in the Trademark Registration Certificate. Filing evidence in the form of either an original or a notarized copy is preferable.

- The following factors are considered when determining whether a mark has been sufficiently used: While the China Trademark Office does consider the scale and frequency of use of the trademark, the actual requirement of use is low; actual commercial use will suffice even if the trademark is not frequently used.
- The respondent cannot demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: The court, other judicial tribunal or administrative body must consider and decide the matter on the merits despite such failure.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: Where marks have acquired distinctiveness through use and become easily distinguishable, they may be registered as trademarks.

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: such lack of use is attributable to force majeure; such lack of use is due to state policy-related restrictions; there is liquidation due to bankruptcy of the registrant; or there are other reasonable excuses not due to the registrant.

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision will not include a formal monetary award against the losing party, regardless of the grounds for cancellation. However, if the registration of the mark has been obtained in bad faith and the registrant has deliberately caused damage to others, the party harmed by this can ask for damage compensation either through negotiation or through a new lawsuit.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is not entitled to recover attorney fees, regardless of the grounds for cancellation.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid only between the parties to the proceeding.
- A decision ordering cancellation of a mark takes effect: For a non-use decision made by the China National Intellectual Property Administration, if the interested party does not apply for a review within 15 days of the receipt date of the aforesaid decision, it will take effect on the 16th day following the receipt date. For an appeal decision on non-use cancellation or a decision on invalidation cancellation made by the China National Intellectual Property Administration, if the interested party does not

apply for the appeal to the court within 30 days of the receipt date of the aforesaid decision, it will take effect on the 31st day following the receipt date.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application, regardless of the grounds for cancellation. However, in non-use cancellations, if the examiner has already begun to examine the case, withdrawal might be rejected in practice.
- Withdrawal of a cancellation application based on any grounds requires the approval of the court, other judicial tribunal or administrative body, regardless of the grounds for cancellation.
- Withdrawal of a cancellation application does not require the approval of the other party to the proceedings; termination is automatic regardless of the grounds for cancellation.
- When cancellation applications are withdrawn, the cost of the proceedings is borne by: the applicant.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: For cancellation proceedings based on absolute or relative grounds, appeals of cancellation decisions must be brought within 30 days of receipt of the decision. For cancellation proceedings based on non-use grounds and grounds other than absolute, relative, or non-use grounds, appeals of cancellation decisions must be brought within 15 days of receipt of the decision.

XIX. Appeals — B. Forum

- Regardless of the grounds for cancellation, appeals are heard by the following court or other judicial tribunal: Beijing Intellectual Property People's Court. the following administrative body: China National Intellectual Property Administration.

XIX. Appeals — C. New Evidence

- New evidence may be submitted on appeal before the China National Intellectual Property Administration and the court.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: For an appeal filed before the Beijing Intellectual Property People's Court, the official fee is RMB 100 Yuan; for an appeal filed before the China National Intellectual Property Administration, the official fee is RMB 750 Yuan.
- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision. For an appeal of a cancellation decision filed by a foreign company/individual before the court, a Chinese lawyer is required; for an appeal of a cancellation decision filed by a foreign company/individual before the China National Intellectual Property Administration, a Chinese lawyer or trademark attorney is required.
- An appeal decision cannot include a monetary award against the losing party if the earlier decision did not include a monetary award. Appeal of a cancellation of a registered trademark does not concern any monetary award. If the party concerned

suffered a loss owing to the cancellation, it can file another lawsuit for compensation.

XIX. Appeals — E. Scope

- An appeal consists of a complete rehearing of the matter, in general.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: the Higher People's Court of Beijing. Details regarding the deadlines and fees for further appeal are as follows: A further appeal should be filed within 15 days of receipt of the adjudication for a domestic party and within 30 days of receipt of the adjudication for a foreign party. The official fee is generally RMB 100 Yuan.
- There is no alternative procedure to an appeal.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, if an applicant is successful in obtaining cancellation, the legal consequences of the cancellation will depend on the grounds on which the proceedings were brought (see below).
- If an applicant succeeds in obtaining cancellation on absolute grounds: the mark is considered as if it were never registered.
- If an applicant succeeds in obtaining cancellation on relative grounds: the mark is considered as if it were never registered.
- If an applicant succeeds in obtaining cancellation on non-use grounds: the mark is considered as having been validly registered until the date of the decision to cancel the mark.
- If an applicant succeeds in obtaining cancellation on grounds other than absolute, relative or non-use grounds: the mark is considered as having been validly registered until the date of the decision to cancel the mark.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: Assignments will be terminated if the mark is cancelled before approval of the assignments. Assignments that have been approved will not be influenced if the mark is cancelled.
- The consequences for past licenses if a mark is cancelled are: Past licenses will be terminated if the trademark is cancelled.
- The consequences for past contracts if a mark is cancelled are: It depends on what the concerned parties agreed to in their contracts.

XXI. Notification to TM Office — A. Notification to TM Office

- There is no requirement to formally notify the Trademark Office following a decision to cancel a mark; cancellation is automatic regardless of the grounds on which the proceedings were brought. Generally, the authority that makes the final decision has the responsibility to notify the Trademark Office. If the Trademark Office is the cancellation authority and it wins on appeal, there is no need to notify the Trademark Office.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- There are limitations as to when an application to register the mark can be refiled, depending on the grounds for the cancellation proceedings.
- There are no time limits for refiling following the cancellation of a mark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: a mark that is registered in the name of a group, an association, or any other organization and is to be used by its members in their commercial activities to indicate their membership, as per the provisions of Paragraph 2 of Article 3 of the Trademark Law of the People's Republic of China.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of collective marks.

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: a mark that is controlled by an organization that is capable of exercising supervision over particular kinds of goods or services and that is used by a unit other than the organization or by an individual for its or his/her goods or services, and is designed to certify the indications of the place of origin, raw materials, mode of manufacture of goods or performance of services, quality, or other characteristics of the goods or services, as per Paragraph 3 of Article 3 of the Trademark Law of the People's Republic of China.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of certification marks.

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